

Who enforces the law? Where do I file a complaint?

What should you do if the password to your email account is stolen? Or if everyone on your Facebook friends list are receiving spam messages from your account? You may start by filing a complaint with the local police station.

A major positive of the IT (Amendment) Act, 2008 over the original IT Act, 2000 was that police officers of the rank of “Inspector” or above were empowered to investigate cyber crimes, as against the rank of “Deputy Superintendent of Police” or above required by the original Act. This would have, at least theoretically, considerably increased the bandwidth of enforcement agencies in handling cybercrimes. However, try not to cross any fingers or toes hoping that you’d get your email account back, as you shall see in the next section.

Here are some examples of cybercrime-fighting infrastructure set up in different parts of India:

1. India’s first exclusive cybercrime enforcement setup was the Cyber Crime Police Station set up in Bangalore
2. This was followed up by a similar police station in Andhra Pradesh, which functions from Hyderabad city and has statewide jurisdiction

Image Courtesy: The Hindu



Police officers attending an orientation programme on cyber laws